

ELIZABETH II



1982 CHAPTER xi

An Act to make provision for the transfer to Hong Kong of the incorporation of The Hong Kong and China Gas Company plc; for the cesser of application to that company of provisions of the Companies Acts 1948 to 1981; and for other purposes incidental thereto. [28th June 1982]

WHEREAS the Hong Kong and China Gas Company plc (hereinafter referred to as "the Company") is an existing company within the meaning of the Companies Acts 1948 to 1981 and is a company limited by shares:

And whereas the Company was incorporated on 3rd June 1862 under the Joint Stock Companies Act 1856:

1856 c. 47.

And whereas the Company carries on the business of manufacturing and distributing gas as well as activities related thereto in Hong Kong:

And whereas the registered office of the Company is situate in England:

And whereas having regard to the fact that the area of operation of the Company is wholly in Hong Kong certain advantages would accrue to the Company if the Company were incorporated under the laws of Hong Kong instead of under the laws of England:

And whereas no procedure exists whereby the incorporation of a company to which the Companies Acts 1948 to 1981 apply can be transferred from England to another country:

And whereas it is desirable that the Company should be enabled to become a company incorporated under the laws of Hong Kong and that thereupon the provisions of the Companies Acts 1948 to 1981 (with the exception of those provisions which apply to oversea companies to the extent that they are applicable to the Company) should cease to apply to the Company:

And whereas by virtue of provisions contained in The Hong Kong and China Gas Company (Transfer of Incorporation) Ordinance 1982 passed by the legislature of Hong Kong and subject to the several conditions set forth in that Ordinance the Company will be enabled, upon the passing of this Act, to become a company incorporated under the Companies Ordinance of Hong Kong (Chapter 32 of the Laws of Hong Kong), as amended, passed by the said legislature:

And whereas it is expedient that such provisions should be enacted as are in this Act contained:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Hong Kong and China Gas Company plc Act 1982.

Interpretation.

2. In this Act unless the subject or context otherwise requires—

1948 c. 38.

“the companies' registrar” means the registrar or other officer performing under the Companies Act 1948 the duty of registration of companies in England;

“the Company” means The Hong Kong and China Gas Company plc;

“the date of incorporation” means the date on which the Company is deemed to become a company incorporated under the Companies Ordinance of Hong Kong (Chapter 32 of the Laws of Hong Kong);

“existing” means existing immediately before the date of incorporation.

Power to become incorporated in Hong Kong.

3. Subject to the laws in force in Hong Kong and with such legislative, governmental, municipal or other authority, concession, licence or consent as is necessary the Company may become incorporated under the laws of Hong Kong.

4.—(1) As soon as reasonably practicable after the date of Registrar in incorporation the Company shall notify the companies' registrar England to thereof by telex or cablegram and shall also transmit to him by strike off registered or insured post a copy of the certificate of incorporation register, but of the Company issued in Hong Kong and on the receipt of the identity to be said certificate the companies' registrar shall with effect from preserved. the date of incorporation strike the name of the Company from the register in England and on and from that date the provisions of the Companies Acts 1948 to 1981 (with the exception of those provisions which apply to oversea companies to the extent that they are applicable to the Company) shall not apply to the Company but the Company shall (save for its incorporation in Hong Kong) for all purposes be the same company as the existing company.

(2) The companies' registrar shall retain and register the copy of the certificate transmitted to him under subsection (1) above.

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